

WELLS FARGO BANK, N.A. v MATA

24CF14901

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION

This is an action by Wells Fargo Bank, N.A. ("Plaintiff") against Baylee M. Mata ("Defendant") for the collection of a credit card debt in the sum of \$18,026.22. In his Answer, Defendant denied the allegations in the Complaint and raised multiple affirmative defenses.

Now before the Court is Plaintiff's motion for summary judgment.

I. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and

does not lead to absurd results, we ascertain intent from the written terms and go no further.” (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff and Defendant entered into a contract for a consumer credit card. (UMF 1.) Pursuant to the contract, Plaintiff provided credit and Defendant used that credit to make consumer purchases. (UMF 2.) Defendant incurred charges, was provided statements detailing those charges, and did not object or deny that she had incurred those charges. (UMF 8, 9.) However, Defendant stopped making payments towards the balance on the subject account and made her last payment of \$100.00 on July 15, 2024. (UMF 10.) Defendant has an unpaid balance on her account of \$18,026.22. (UMF 11.)

Plaintiff has carried its burden of demonstrating evidence supporting all of the elements of its claim for breach of contract. The burden then shifts to Defendant to raise a triable issue of material fact, however, Defendant has failed to oppose this motion.

III. Conclusion

Plaintiff’s motion for summary judgment is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.